



CITY COUNCIL Staff Report

Meeting Date: Dec. 5, 2023

To: Mayor and City Council

From: Scott Chadwick, City Manager

Staff Contact: Kyle Lancaster, Parks & Recreation Director
kyle.lancaster@carlsbadca.gov, 442-339-2941

Subject: Joint Use and Community Recreation Agreement between Carlsbad Unified School District and City of Carlsbad Specific to Eight School Facilities

Districts: All

Recommended Action

Adopt a resolution approving a joint use and community recreation agreement between the Carlsbad Unified School District and the City of Carlsbad, specific to the use and maintenance of designated athletic fields, sport courts and grounds at eight school facilities for a 10-year term.

Executive Summary

A joint use and community recreation agreement between the Carlsbad Unified School District and the City of Carlsbad has been in place since 1989. The agreement has allowed the city to reserve the use of designated athletic fields, sport courts and grounds at specific school facilities except when they were reserved for use by the district in exchange for the city performing the ongoing routine maintenance of the designated amenities.

The district approved a new 10-year joint use and community recreation agreement between the district and the city on Nov. 15, 2023. Staff are recommending that the City Council also approve the new agreement.

The City Council's approval is required because the Carlsbad Municipal Code does not explicitly delegate the authority for approving such agreements to the City Manager.

Explanation & Analysis

The current 10-year joint use and community recreation agreement between the district and the city was approved by the district on Dec. 4, 2013, and next by the city on Aug. 26, 2014. (Exhibit 2)

Staff from both the district and the city have recently met and conferred on the content of the current agreement. Minor changes were proposed to the agreement to clarify the reservation process for the city's priority use of the specific school facilities, the boundaries of the fields, courts and grounds to be used and maintained by the city, the expectation for security and

cleanliness of the designated amenities, and the commitment for district and city staff to meet quarterly to discuss and coordinate the applicable operations (Exhibit 3).

The eight athletic fields, sport courts and grounds and their acreages are:

School facility	Acreage
Magnolia Elementary School Field	4
Jefferson Elementary School Field	2.2
Buena Vista Elementary School Lower Field	2.5
Carlsbad High School Tennis Courts	1.7
Valley Middle School Upper and Lower Fields	8.5
Aviara Oaks Middle School Field	4.7
Kelly Elementary School Field	2.9
Hope Elementary School Field	2.8
Total	29.3

The acreages of these amenities are included in the calculations for the Carlsbad Citywide Facilities and Improvements Plan's Parks Performance Standard of "three acres of Community Parks or Special Use Areas per 1,000 population within each park district." The amenities are to be open to public use during city park operating hours of 8 a.m. to 10 p.m., as reserved by the city, except for periods when school is in session (i.e., generally from 8 a.m. to 3 p.m., Monday through Friday, not including the spring, summer and winter recesses and holidays) and for periods when the amenities are otherwise reserved for use by the district.

In exchange for the public use of the amenities during periods not excepted above, the City of Carlsbad is to perform the ongoing routine maintenance of the designated amenities.

Fiscal Analysis

Sufficient funds are available for the initial seven months of the new Joint Use and Community Recreation Agreement in the City Council approved Fiscal Year 2023-24 Operating Budget. Specifically, the Parks & Recreation Department Parks Maintenance budget has accounted for the routine maintenance of the designated amenities within the specific school facilities. No additional appropriation is being requested at this time.

The funding needed for the subsequent years of the agreement will be included in future operating budget submissions for the City Council's consideration.

Next Steps

City staff will coordinate with the district staff to immediately implement the new agreement.

Environmental Evaluation

This action does not require environmental review because it does not constitute a project within the meaning of the California Environmental Quality Act under California Public Resources Code Section 21065 in that it has no potential to cause either a direct physical change or a reasonably foreseeable indirect physical change in the environment.

Exhibits

1. City Council resolution
2. City Council staff report, dated Aug. 26, 2014
2. Version of current agreement showing proposed changes

RESOLUTION NO. 2023-280

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF CARLSBAD, CALIFORNIA, APPROVING A JOINT USE AND COMMUNITY RECREATION AGREEMENT BETWEEN THE CARLSBAD UNIFIED SCHOOL DISTRICT AND THE CITY OF CARLSBAD SPECIFIC TO THE USE AND MAINTENANCE OF DESIGNATED ATHLETIC FIELDS, SPORT COURTS AND GROUNDS AT EIGHT SCHOOL FACILITIES FOR A 10-YEAR TERM

WHEREAS, a joint use and community recreation agreement between the Carlsbad Unified School District and the City of Carlsbad has been in place since 1989; and

WHEREAS, the agreement has allowed the city to reserve the use of designated athletic fields, sport courts and grounds at specific school facilities (except when those amenities were reserved for use by the district), in exchange for the performance of ongoing routine maintenance of the designated amenities by the City of Carlsbad; and

WHEREAS, the current 10-year agreement between the district and the city was approved by the district on Dec. 4, 2013, and by the city on Aug. 26, 2014; and

WHEREAS, staff from both the district and the city have recently met and conferred on the content of the current agreement; and

WHEREAS, minor changes were proposed to the agreement to clarify the reservation process for the city's priority use of the specific school facilities, the boundaries of the fields, courts and grounds to be used and maintained by the city, the expectation for security and cleanliness of the designated amenities, and a commitment for district and city staff to meet quarterly to coordinate operations; and

WHEREAS, acreages of the amenities within these school facilities are included in calculations for the Carlsbad Citywide Facilities and Improvements Plan Parks Performance Standard of "three acres of Community Parks or Special Use Areas per 1,000 population within each park district;" and

WHEREAS, the amenities are to be open to public use during city park operating hours of 8 a.m. to 10 p.m., as reserved by the city - except for periods when school is in session (i.e., generally from 8 a.m. to 3 p.m., Monday through Friday, sans spring, summer and winter recesses and holidays) and for periods when the amenities are otherwise reserved for use by the district; and

WHEREAS, sufficient funds are available for the initial seven months of the new Joint Use and Community Recreation Agreement in the City Council approved Fiscal Year 2023-24 Operating Budget for the Parks & Recreation Department, and funding needed for the subsequent years of the agreement

will be included in future Parks & Recreation Department Operating Budget submittals for the City Council's consideration; and

WHEREAS, a new 10-year joint use and community recreation agreement between the district and the city was approved by the district on Nov. 15, 2023; and

WHEREAS, staff recommend that the City Council also approve the new 10-year joint use and community recreation agreement; and

WHEREAS, the City Planner has determined that pursuant to California Public Resources code Section 21065, this action does not constitute a "project" within the meaning of the California Environmental Quality Act in that it has no potential to cause either a direct physical change in the environment, or a reasonably foreseeable indirect change in the environment, and therefore does not require environmental review.

NOW, THEREFORE, BE IT RESOLVED by the City Council of the City of Carlsbad, California, as follows:

1. That the above recitations are true and correct.
2. That the City Council hereby approves and directs the Mayor to enter into a joint use and community recreation agreement between the Carlsbad Unified School District and the City of Carlsbad, specific to the use and maintenance of designated athletic fields, sport courts and grounds at eight school facilities, for a 10-year, which is attached hereto as Attachment A.

PASSED, APPROVED AND ADOPTED at a Regular Meeting of the City Council of the City of Carlsbad on the 5th day of December, 2023, by the following vote, to wit:

AYES: Blackburn, Bhat-Patel, Acosta, Burkholder, Luna.

NAYS: None.

ABSTAIN: None.

ABSENT: None.





KEITH BLACKBURN, Mayor



SHERRY FREISINGER, City Clerk
(SEAL)

JOINT USE AND COMMUNITY RECREATION AGREEMENT

BETWEEN CARLSBAD UNIFIED SCHOOL DISTRICT

AND

CITY OF CARLSBAD

THIS AGREEMENT ("Agreement") made and entered into as of the 5th day of December, 2023 by and between CITY OF CARLSBAD, a municipal corporation, hereinafter referred to as "City" and the Carlsbad Unified School District, State of California, hereinafter referred to as "District".

WITNESSETH

WHEREAS, the governing bodies of the City and District are mutually interested in an adequate program of community recreation under the auspices of the City Parks & Recreation Department, in cooperation with the District; and

WHEREAS, cities and school districts are authorized by Chapter 10 of Part 7 of Division 1, Title 1 of the Education Code of the State of California (sections 10900-10914.5) to facilitate a community recreation program and activities within or without their territorial limits; and

WHEREAS, said governing bodies are authorized to enter into agreements with each other, to promote the health and general welfare of the community and contribute to the attainment of the general recreation objectives for the children and adults within the community; and

WHEREAS, the City has established a "Parks & Recreation Department" responsible for carrying out the purposes of community recreation; and

WHEREAS, in the interest of providing the best service with the least possible expenditure of public funds, cooperation between the City and the District is necessary;

WHEREAS, the purpose of this Agreement is to define the City's joint use of District facilities, with separate agreements governing the District's use of the City's aquatic facilities.

NOW, THEREFORE, the City and District agree as follows:

1. The District will make available to the City certain school buildings (gymnasiums), and multipurpose fields, and related equipment at select school sites (collectively, "Joint Use Facilities") for the purpose of facilitating a diversified community recreational program. The Joint Use Facilities to be utilized pursuant to this Agreement shall include those specified in Section

10 of this Agreement, or any other such facilities that are subsequently agreed to in writing by the District and City, as approved by the City Manager and the District's Superintendent ("Superintendent") or their designated representatives.

2. The use of the Joint Use Facilities pursuant to this Agreement shall be in accordance with the regular procedures of the District in granting requests for use of school facilities, as specified by California Education Code sections 10900-10914.5, the Civic Center Act (California Education Code sections 38130-38138), and the policies, rules and regulations of the District's Governing Board ("District Board"), including Board Policy 1330 (Use of School Facilities).

3. The recreation programs and activities scheduled by the City at the Joint Use Facilities shall be open on equal terms to all persons residing within the boundaries of the District and City, but such participation shall be subject to rules and regulations adopted by the City Council and the School District. It shall be the responsibility of the City to enforce the adherence of its permitted user groups to all rules and regulations established by the City and the District at the Joint Use Facilities. Failure to follow established rules and regulations may result in the denial of a request to use or access the Joint Use Facilities. If the District is impacted by the failure of a City scheduled user group to follow the rules and regulations, the District may in cooperation with the City, terminate the right of that user group to utilize the Joint Use Facilities.

4. A schedule of dates for the use of the Joint Use Facilities will be coordinated in advance by the City and the District through separate scheduling agreements prepared biannually. The schedule will be arranged as to avoid conflict between school use and City recreational use. The scheduling of said facilities by the City Parks & Recreation Department for the purposes specified in this Agreement shall have second priority to those school events and programs scheduled by the District consistent with the biannual scheduling agreement.

Each biannual scheduling agreement will be prepared using the District's online reservation management system. At least three (3) months before the City can access the District's online reservation management system to reserve dates, District shall notify the City of the timeframe during which the City can reserve dates through the online reservation system (the "biannual scheduling period"). The biannual scheduling period shall last for a minimum of four (4) weeks. During each biannual scheduling period, City will use the District's online reservation system to reserve dates for the use of the Joint Use Facilities. The City may reserve additional dates for the use of the Joint Use Facilities following the biannual scheduling period subject to availability.

5. In the event of any dispute or conflict arising between the City and the District as a result of the recreation program being conducted at the Joint Use Facilities, said dispute or

conflict shall be settled by appealing to the City Manager and the Superintendent of the District ("District Superintendent"), in accordance with established policies and procedures of the District and City.

6. The Parks & Recreation Department will provide or cause to be provided all expendable materials (i.e. bats, balls, etc.) necessary for facilitating the recreational programs for all ages that will be conducted at the Joint Use Facilities, to the extent scheduled and conducted by the Parks & Recreation Department.

7. The City may install and will maintain irrigation systems, turf, ground cover, shrubs, trees, related amenities (backstops, dugouts, fencing, benches, etc.), and additional recreational equipment not in conflict with school use, on school property in areas agreed upon by the City Manager or designee, subject to the prior approval by the District Superintendent.

The City will provide general landscape and grounds maintenance services of multipurpose fields including, but not necessarily limited to irrigating, mowing, aerating, fertilizing, renovating, weeding, trimming, staking, disease treating, rodent/pest controlling (NO FUMIGATION ALLOWED ON DISTRICT SITES), as well as related amenities/equipment maintenance, including, but not limited to, sanding, painting, strapping, tying, anchoring, graffiti removal, and drainage. City will collect litter/trash (including animal waste) from multipurpose fields prior to each daily period of scheduled use by the City (i.e., 8:00 a.m. to 10:00pm, or as otherwise reserved per Section 4). The District and the City will meet quarterly to confer on grounds maintenance services and standards of care for physical education and playground spaces.

The City and/or its agents shall have the right to daily access to the involved properties for maintenance purposes as needed, subject to applicable City ordinances and reasonable regulation by the District for purposes of monitoring and protecting student safety. The City will provide the District Facilities Department a current "Schedule of Maintenance" for all sites listed in Section 10 of this Agreement, as well as those sites added pursuant to Section 1 of this Agreement.

Any plans, specifications, and installations of new equipment or new construction of facilities for community recreation purposes or otherwise shall be at the City's expense, shall have prior approval by the District Superintendent, shall meet standards established in the California Education Code and Code of Regulations, and shall receive the approval, as required, of the California Division of the State Architect ("DSA"). All structures on school grounds shall be constructed or modified in strict compliance with the requirements of DSA.

8. All structures or improvements constructed on the Joint Use Facilities site or installed thereon by City with the District's approval (the "Improvements"), shall become and thereafter remain the

property of the District AS-IS and without any warranty of any kind. The District may require the City, at the City's expense, to immediately remove any unapproved new structures that are installed in violation of the requirement of DSA or the Field Act, as set forth in Articles 3 and 6 (commencing with Sections 17280 and 17365, respectively) of Chapter 3, Part 10.5, Division 1, Title 1 of Education Code.

9. Prior to the installation by the City of any improvements, as mutually agreed upon by the City and the District, the City and District shall agree on the fair market value and anticipated service life of said improvement. Should the District exercise its option to terminate all or part of the Joint Use and Community Recreation Agreement, a prorated value for the specific improvement shall be assessed and paid to the City by the District.

10. The District and the City agree to the use of the following specific Joint Use Facilities:

- a. The City has the option to schedule the use of, and have access to, approved Joint Use Facilities, subject to the limitations set forth in this Agreement.
- b. The City will maintain the multipurpose field areas and/or schoolgrounds on the following "Joint Use Facilities":

Magnolia Field	4.0 acres
Jefferson Field	2.20 acres
Buena Vista Lower Field	2.48 acres
Carlsbad HS Tennis Courts	1.68 acres
Valley Middle School Upper and Lower Fields (including adjoining slopes)	8.5 acres
Aviara Oaks Middle School Field	4.70 acres
Kelly Field	2.90 acres
Hope Field	2.80 acres
Totaling	29.26 acres

- c. City will have access during scheduled use to the parking lots affiliated with the listed schools above, unless they have been previously scheduled by the District for District use consistent with the biannual scheduling agreement.
- d. City may schedule the after-school, weekend, holiday, and school recess use of all District approved schoolgrounds and multipurpose fields, when not already

scheduled for District use consistent with the biannual scheduling agreement.

- e. The City may utilize the school buildings (gymnasiums) provided applicable rental requirements are satisfied and a standard fee established and approved by the District is paid.
- f. Except as provided in Section 10.e., the Joint Use Facilities described in this Agreement do not include access to school restrooms.
- g. The City will ensure that perimeter gates of all Joint Use Facilities are secure following the daily period of scheduled use (i.e., 8:00 a.m. to 10:00pm, or as otherwise reserved per Section 4), on any dates outside of school operating dates.
- h. Boundary maps of the multipurpose field areas and/or schoolgrounds of the Joint Use Facilities described in this section are attached to this Agreement as Exhibit A.

11. Except as expressly provided in this Agreement, the District shall be responsible for all costs relating to maintenance, repair, and replacement of District owned and maintained facilities and grounds.

12. For the purposes of this Agreement, no persons employed in the performance of services and functions on behalf of City shall be deemed to be District employees or independent contractor's of the District. No City employee shall be considered to be an employee of the District or under the jurisdiction of the District, nor shall such City employees have any District pension, civil service, or other status while an employee of the City. The District shall not be responsible for the payment of any salary, wage, or other compensation to any City personnel or City independent contractor performing services hereunder for City. City shall not be liable for compensation or indemnity to any District employee or independent contractor of the District for injury or sickness or wages arising out of his/her employment with or work on behalf of the District.

13. The District agrees that during the time that the City has use of the Joint Use Facilities, City may charge admissions fees for amateur athletic contests, demonstrations or exhibits, and other educational and non-commercial events. Such fees shall be levied and collected by the City, and shall remain the property of the City. Admission fees, however, may not be charged for any other type of events. In the use of Joint Use Facilities under this Agreement, City agrees to comply with all of the requirements of the Education Code, including, but not limited to, the Civic Center Act as set forth in Education Code Section 38130 *et seq.*, setting forth the limitations, requirements, and restrictions on the use of the Joint Use Facilities, and the fees that may be charged for the use thereof.

14. It is understood and agreed that all activities at the Joint Use Facilities sponsored by District shall be supervised and conducted by District, and that all activities facilitated by City at the Joint

Use Facilities, pursuant to this agreement, shall be monitored by City staff as necessary. Each party shall be responsible for said areas during their period of use, and will bear the costs of all necessary supervising or teaching personnel during said period.

15. Insofar as it is legally authorized, the District shall hold free and harmless and defend the City and its officers, officials, employees, agents, and volunteers, while acting as such ("City Agents"), from and against all claims, losses, damages, costs, expenses or liability which may arise because of damage to property, or injury to or death of persons, received or suffered by reason of or result of (1) any defective or dangerous condition of any ground, site, building, equipment, play areas recreation facilities or other improvement located on the Joint Use Facilities owned and maintained by District, or (2) participation in any activity carried out or sponsored by the District, or (3) any school activity being conducted on said premises by the District. Notwithstanding the foregoing, in no event shall the District be required to indemnify, hold harmless, or defend the City for any claims, losses, damages, costs, expenses, or liabilities to the extent arising from the City or the City Agents' sole or active negligence or willful misconduct, or from defective or dangerous conditions either caused by the City or the City Agents, or those known by the City or the City Agents and not reported to the District.

16. Insofar as it is legally authorized, the City shall hold free and harmless and defend the District, and its officers, officials, employees, agents, and volunteers, while acting as such ("District Agents"), from all claims, loss, damages, costs, expenses or liability which may arise because of damage to property, or injury to or death of persons, received or suffered by reason of or result of (1) operation by the City of a City recreational program on or at the Joint Use Facilities, (2) the City's development of the athletic fields on or at the Joint Use Facilities or the City's performance of its obligations under this Agreement, or (3) a direct result of any recreational activity being conducted on the Joint Use Facilities by the City. Notwithstanding the foregoing, in no event shall the City be required to indemnify, hold harmless, or defend the District for any claims, losses, damages, costs, expenses, or liabilities to the extent arising from the District or the District Agents' sole or active negligence or willful misconduct. For all purposes of this Agreement, the use by any individual or group of the Joint Use Facilities as a result of the City's rights hereunder shall be deemed a use by the City of the Joint Use Facilities. The City's obligations under this section shall include the obligation to defend, indemnify, and hold harmless the District from and against any Workers' Compensation suits, liability, or expense arising from or connected with services performed on behalf of the City by any person pursuant to, or as a result of, this Agreement, or by way of their employment with the City.

17. The District shall carry property damage and public liability insurance that cover the Joint Use Facilities and other areas and activities set forth in this Agreement. The City's property damage and public liability insurance shall include all areas and activities set forth in this Agreement under their self-insurance program. Each party shall maintain limits of no less than (1) general liability coverage of at least \$5,000,000 per occurrence, \$10,000,000 aggregate for bodily injury, personal injury, and property damage, and (2) workers' compensation coverage in an amount sufficient to satisfy statutory limits and employer's liability in the amount of \$1,000,000 per accident for bodily injury or disease. For the General Liability policy, the other party, as well as their council members, board members, officers, officials, employees, agents, volunteers, and contractors, shall be named as additional insured's, with an endorsement evidencing such coverage to be provided to the other Party. Said coverage shall be primary insurance as respects the other Party, and its council members, board members, officers, officials, employees, agents, volunteers, and contractors. Any deductibles or self-insured retentions in excess of \$10,000 must be declared to and approved by the other Party. A policy of self-insurance may satisfy the foregoing obligations.

The Parties shall furnish the other Party with original certificates and amendatory endorsements evidencing the coverage required herein, and complete certified copies of the underlying policies shall be provided on request.

18. The parties hereto acknowledge that there have been no representations made by either to the other not contained herein upon which either party is relying which has induced execution herein. This agreement embodies the entire agreement and understanding between the parties hereto relating to the subject matter hereof.

19. The City and its users shall only have access to those areas specified in this Agreement. The City and its users shall not trespass or loiter in other areas of the school sites.

20. The term of this Agreement shall be for a length of ten years, renewable by mutual written agreement between the City and the District. In addition, the terms of this Agreement may be modified at any time by mutual consent and written agreement of the respective parties.

21. Nothing in this Agreement is intended to affect the District's fee ownership of the Joint Use Facilities. The City shall neither encumber, nor permit the encumbrance of, any portion of the Joint Use Facilities. The City shall neither record, nor permit the recording of, any lien, including any mechanics or other liens or encumbrances of any nature with respect to the Joint Use Facilities. The City shall not pledge, assign or transfer, or collaterally assign, pledge or transfer any portion of the Joint Use Facilities, including any improvements thereon.

22. Nothing in this Agreement shall be construed to prohibit the District from participating financially in a specific recreation program when mutually agreed upon by the Board and the City Council.

23. This Agreement shall be binding upon and inure to the benefit of the heirs, successors, and assigns of the Parties. The City shall not, without written consent of the District, assign its rights and/or obligations under this Agreement without the consent of the District. The District shall not, without written consent of the City, assign its rights and/or obligations under this Agreement without the consent of the City.

24. If any Article, Section, Subsection, term, provision, covenant or condition of this Agreement is held by a court of competent jurisdiction to be invalid, void or unenforceable, the remaining Articles, Sections, Subsections, terms, provisions, covenants and conditions of this Agreement shall continue in full force and effect.

25. Failure by either Party to enforce any term, condition, restriction, or provision of this Agreement, in any certain instance or on any particular occasion, shall not be deemed a waiver of such enforcement right with respect to that or any future breach of the same or any other term, condition, restriction or provision herein.

26. Non-performance by any Party of any obligation set forth herein shall be excused when it is reasonably prevented or delayed by reason of any act, event, or condition reasonably beyond the control of that Party for any of the following reasons: (i) war, insurrection, significant and substantial civil commotion, riot, flood, severe weather, earthquake, fire, casualty, acts of public enemy, acts of God, governmental restriction other than of the non-performing Party, litigation (including, without limitation, litigation contesting the validity of, or seeking the enforcement or clarification of, this Agreement whether instigated by the District, City, or any other person or entity), acts or failures to act of any governmental agency or entity other than the non-performing Party; (ii) inability after best efforts to secure necessary labor, materials or tools, strikes, lockouts, other labor disputes, or delays of any contractor, subcontractor or supplier; or (iii) inability after best efforts to obtain and consummate necessary financing, or delays caused by any lender or third party relating thereto, provided, however, that any delay based upon this clause shall not be excused beyond one year.

27. This Agreement and all rights and obligations arising out of it shall be construed in accordance with the laws of the State of California. Any arbitration, litigation or other proceeding arising out of this Agreement shall be conducted only in the County of San Diego.

28. In interpreting this Agreement, it shall be deemed to have been prepared by the Parties jointly and no ambiguity shall be resolved against either Party on the premise that it or its attorneys was responsible for drafting this Agreement or any provision hereof. The captions or headings set forth in this Agreement are for convenience only and in no way define, limit, or describe the scope or intent or any Article, Section, or other provision hereof.

29. Nothing in this Agreement shall be construed as authorizing the recovery by, or award to, the prevailing Party in any action or other proceeding arising from this Agreement of attorneys' fees, costs, and expenses.

30. The Recitals stated herein are hereby incorporated into, and are effective and operative parts of, this Agreement.

31. This Agreement may be terminated without cause by either party as of June 30 of any fiscal year for any reason upon at least 180 days' written notice to the other. In the event of a default of any obligation by either party, the non-defaulting party shall be entitled to terminate this Agreement with 30 days' notice, provided the non-defaulting party has first provided the defaulting party with a notice of default and a 60-day opportunity to cure said default.

32. This Agreement may be executed in counterparts, each of which shall be an original and all of which shall constitute but one and the same instrument. Signature pages may be detached from counterpart originals and combined in one or more copies of this Agreement to physically form copies of this Agreement having original signatures of both Parties.

ATTEST:



Sherry Freisinger, City Clerk
CITY OF CARLSBAD a Municipal Corporation of the State of California


By _____
Keith Blackburn, Mayor
CARLSBAD UNIFIED SCHOOL DISTRICT By _____

By  _____

By _____

APPROVED AS TO FORM: CINDIE MCMAHON, City Attorney

By:  _____
Assistant City Attorney





LAS FLORES DR

PIO PICO DR





Exhibit A
City of
Carlsbad

Valley Junior High School JUA

Dec. 5, 2023

Item #2

Page 19 of 44





Kelly Elementary School JUA

Dec. 5, 2023

Item #2

Page 21 of 44



Exhibit A
City of
Carlsbad

0 10 20 40 Feet

Hope Elementary School JUA

Dec. 5, 2023

Item #2

Page 22 of 44

**CITY OF CARLSBAD – AGENDA BILL****7**

AB#	21,714	APPROVE THE JOINT USE AND COMMUNITY RECREATION AGREEMENT BETWEEN CARLSBAD UNIFIED SCHOOL DISTRICT AND CITY OF CARLSBAD TO MAINTAIN AND UTILIZE MULTIPURPOSE FIELD AREAS, TENNIS COURTS AND SCHOOL GROUNDS	DEPT. DIRECTOR	<i>CH. by SSS</i>
MTG.	8/26/14		CITY ATTY.	<i>[Signature]</i>
DEPT.	P&R		CITY MGR.	<i>KD</i>

RECOMMENDED ACTION:

Adopt Resolution No. 2014-207 approving the Joint Use and Community Recreation Agreement between Carlsbad Unified School District and City of Carlsbad to maintain and utilize multipurpose field areas, tennis courts and school grounds.

ITEM EXPLANATION:

The 1989 Joint Use and Community Recreation Agreement between Carlsbad Unified School District and City of Carlsbad has been amended and updated as a result of joint discussions between Parks & Recreation Department staff and Carlsbad Unified School District representatives.

The amended agreement describes the responsibilities of both parties for maintenance and use of multipurpose fields, tennis court, and school grounds. The proposed agreement includes minor wording revisions, and the addition of school multipurpose fields (Valley lower field, Kelly, and Hope) that are not currently maintained by the City under the existing agreement. Based on the terms of this agreement, the City will be responsible for maintaining a combined total of 27.41 acres of multipurpose fields, tennis courts, and school grounds.

Facility	Acres
Magnolia field	4.0
Jefferson field	2.3
Buena Vista lower field	2.48
Carlsbad High School tennis courts	1.26
Valley Middle School upper and lower fields	8.5
Aviara Oaks Middle School field	3.17
Kelly field	2.9
Hope field	2.8

The Governing Board of the Carlsbad Unified School District met on Dec. 4, 2013 and approved the revised agreement (Exhibit 2).

DEPARTMENT CONTACT: Mick Calarco 760-434-2859 mick.calarco@carlsbadca.gov

FOR CLERK USE.				
COUNCIL ACTION:	APPROVED	☒	CONTINUED TO DATE SPECIFIC	☐
	DENIED	☐	CONTINUED TO DATE UNKNOWN	☐
	CONTINUED	☐	RETURNED TO STAFF	☐
	WITHDRAWN	☐	OTHER – SEE MINUTES	☐
	AMENDED	☐	REPORT RECEIVED	☐

FISCAL IMPACT:

The total increased cost for assuming responsibility of the additional 17.37 acres under the proposed agreement is not to exceed \$30,000 for one time refurbishments/retrofits, and \$75,000 annually for ongoing routine maintenance. These costs were accounted for with recently identified savings from the Parks & Recreation Department 2014-15 FY operating budget.

ENVIRONMENTAL IMPACT:

Pursuant to Public Resources Code section 21065, this action does not constitute a “project” within the meaning of CEQA in that it has no potential to cause either a direct physical change in the environment, or a reasonably foreseeable indirect physical change in the environment, and therefore does not require environmental review.

EXHIBITS:

1. Resolution No. 2014-207 approving the Joint Use and Community Recreation Agreement between Carlsbad Unified School District and City of Carlsbad to maintain and utilize multipurpose field areas, tennis courts and school grounds as identified in the agreement for recreational programming.
2. Carlsbad Unified School District “Exhibit A: Joint Use and Community Recreation Agreement between Carlsbad Unified School District and City of Carlsbad” (as amended).

RESOLUTION NO. 2014-207

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF CARLSBAD, CALIFORNIA, APPROVING THE JOINT USE AND COMMUNITY RECREATION AGREEMENT BETWEEN CARLSBAD UNIFIED SCHOOL DISTRICT AND CITY OF CARLSBAD TO MAINTAIN AND UTILIZE MULTIPURPOSE FIELD AREAS, TENNIS COURTS AND SCHOOL GROUNDS.

WHEREAS, a Joint Use and Community Recreation Agreement between Carlsbad Unified School District and City of Carlsbad is necessary for the Parks & Recreation Department to maintain and utilize designated multipurpose fields, tennis courts and school grounds to provide for community recreational needs, and;

WHEREAS, the existing agreement has been revised and updated to accurately reflect current and new maintenance and use responsibilities of both the City and the District, and;

WHEREAS, the City Council and the Carlsbad Unified School District Governing Board are in accord with the terms of the attached agreement (Exhibit 2),

NOW, THEREFORE, BE IT RESOLVED by the City Council of the City of Carlsbad, California, as follows that:

1. The above recitations are true and correct.
2. That the Joint Use and Community Recreation Agreement between Carlsbad Unified School District and City of Carlsbad attached hereto and made a part hereof is approved.

//

//

//

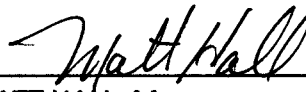
//

1 PASSED, APPROVED AND ADOPTED at a Regular Meeting of the City Council of the City
2 of Carlsbad on the 26th day of August, 2014, by the following vote to wit:

3 AYES: Council Members Hall, Packard, Wood, Schumacher, Blackburn.
4

5 NOES: None.
6

7 ABSENT: None.
8
9

10
11 
12 MATT HALL, Mayor

13 ATTEST:
14

15 
16 BARBARA ENGLESON, City Clerk

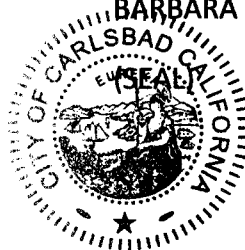


Exhibit A

JOINT USE AND COMMUNITY RECREATION AGREEMENT

BETWEEN CARLSBAD UNIFIED SCHOOL DISTRICT

AND

CITY OF CARLSBAD

THIS AGREEMENT ("Agreement") made and entered into as of the 4 day of December, 2013, by and between CITY OF CARLSBAD, a municipal corporation, hereinafter referred to as "City" and the Carlsbad Unified School District, State of California, hereinafter referred to as "District".

WITNESSETH

WHEREAS, the governing bodies of the City and District are mutually interested in an adequate program of community recreation under the auspices of the City Parks & Recreation Department, in cooperation with the District; and

WHEREAS, cities and school districts are authorized by Chapter 10 of Part 7 of Division 1, Title 1 of the Education Code of the State of California (sections 10900-10914.5) to facilitate a community recreation program and activities within or without their territorial limits; and

WHEREAS, said governing bodies are authorized to enter into agreements with each other, to promote the health and general welfare of the community and contribute to the attainment of the general recreation objectives for the children and adults within the community; and

WHEREAS, the City has established a "Parks & Recreation Department" responsible for carrying out the purposes of community recreation; and

WHEREAS, in the interest of providing the best service with the least possible expenditure of public funds, cooperation between the City and the District is necessary;

WHEREAS, the purpose of this Agreement is to define the City's joint use of District facilities, with separate agreements governing the District's use of the City's aquatic facilities.

NOW, THEREFORE, the City and District agree as follows:

1. The District will make available to the City certain school buildings (gymnasiums), and multi-purpose fields, and related equipment at select school sites (collectively, "Joint Use Facilities") for the purpose of facilitating a diversified community recreational program. The Joint Use Facilities to be utilized pursuant to this Agreement shall include those specified in Section 10 of this Agreement, or any other such facilities that are subsequently agreed to in writing by the District and City, as approved by the City Manager and the District's Superintendent ("Superintendent") or their designated representatives.

Exhibit A

2. The use of the Joint Use Facilities pursuant to this Agreement shall be in accordance with the regular procedures of the District in granting requests for use of school facilities, as specified by Chapter 10 (commencing with Section 10900) of Part 7, Division 1, Title 1 of the Education Code for the State of California and the policies, rules and regulations of the District's Governing Board ("District Board").

3. The recreation programs scheduled by the City at the Joint Use Facilities shall be open on equal terms to all persons residing within the boundaries of the District and City, but such participation shall be subject to rules and regulations adopted by the City Council and the School District. It shall be the responsibility of the City to enforce the adherence of its permitted user groups to all rules and regulations established by the City and the District at the Joint Use Facilities. Failure to follow established rules and regulations may result in the denial of a request to use or access the Joint Use Facilities. **If the District is impacted by the failure of a City scheduled user group to follow the rules and regulations, the District may in cooperation with the City, terminate the right of that user group to utilize the Joint Use Facilities.**

4. A schedule of dates for the use of the Joint Use Facilities will be coordinated in advance by the City and the District through separate scheduling agreements prepared biannually. The schedule will be arranged as to avoid conflict between school and other recreational use. The scheduling of said facilities by the Parks & Recreation Department for the purposes specified in this Agreement shall have second priority to those school events and programs scheduled by the District consistent with the biannual scheduling agreement.

5. In the event of any dispute or conflict arising as a result of the recreation program being conducted at the Joint Use Facilities, said dispute or conflict shall be settled by appealing to the City Manager and the Superintendent of the District ("District Superintendent"), in accordance with established policies and procedures of the District and City.

6. The Parks & Recreation Department will provide or cause to be provided all expendable materials (i.e. bats, balls, etc.) necessary for facilitating the recreational programs for all ages that will be conducted at the Joint Use Facilities, to the extent scheduled and conducted by the Parks & Recreation Department.

7. The City may install and will maintain irrigation systems, turf, ground cover, shrubs, trees, related amenities (backstops, dugouts, fencing, benches, etc.), and additional recreational equipment not in conflict with school use, on school property in areas agreed upon by the City Manager or designee, subject to the prior approval by the District Superintendent.

The City will provide general landscape and grounds maintenance services of multipurpose fields including, but not necessarily limited to irrigating, mowing, aerating, fertilizing, renovating, weeding, trimming, staking, disease treating, rodent/pest controlling (NO FUMIGATION ALLOWED ON DISTRICT SITES), and litter/trash collecting, as well as related amenities/equipment maintenance, including, but not limited to, sanding, painting, strapping, tying, anchoring, graffiti removal, and drainage. The City and/or its agents shall have the right to daily access to the involved properties for maintenance purposes as needed, subject to applicable City ordinances and reasonable regulation by the District for

Exhibit A

purposes of monitoring and protecting student safety. The City will provide the District Facilities Department a current "Schedule of Maintenance" for all sites listed in Section 10 of this Agreement, as well as those sites added pursuant to Section 1 of this Agreement.

Any plans, specifications, and installations of new equipment or new construction of facilities for community recreation purposes or otherwise shall be at the City's expense, shall have prior approval by the District Superintendent, shall meet standards established in the California Education Code and Code of Regulations, and shall receive the approval, as required, of the California Division of the State Architect ("DSA"). All structures on school grounds shall be constructed or modified in strict compliance with the requirements of DSA.

8. All structures or improvements constructed on the Joint Use Facilities site or installed thereon by City with the District's approval (the "Improvements"), shall become and thereafter remain the property of the District **AS-IS** and without any warranty of any kind. The District may require the City, at the City's expense, to immediately remove any unapproved new structures that are installed in violation of the requirement of DSA or the Field Act, as set forth in Articles 3 and 6 (commencing with Sections 17280 and 17365, respectively) of Chapter 3, Part 10.5, Division 1, Title 1 of the Education Code.

9. Prior to the installation by the City of any improvements, as mutually agreed upon by the City and the District, the City and District shall agree on the fair market value and anticipated service life of said improvement. Should the District exercise its option to terminate all or part of the Joint Use and Community Recreation Agreement, a prorated value for the specific improvement shall be assessed and paid to the City by the District.

Exhibit A

10. The District and the City agree to the use of the following specific Joint Use Facilities:

- a. The City has the option to schedule the use of approved Joint Use Facilities, subject to the limitations set forth in this Agreement.
- b. The City will maintain the multipurpose field areas and/or school grounds on the following "Joint Use Facilities":

Magnolia Field	4.0 acres
Jefferson Field	2.30 acres
Buena Vista Lower Field	2.48 acres
Carlsbad HS Tennis Courts	1.26 acres
Valley Middle School (Upper and Lower Fields (including adjoining slopes))	8.5 acres
Aviara Oaks Middle School Field	3.17 acres
Kelly Field	2.90 acres
Hope Field	2.80 acres
Totaling	27.41 acres

- c. City will have access during scheduled use to the parking lots affiliated with the listed schools above, unless they have been previously scheduled by the District for District use consistent with the biannual scheduling agreement.
 - d. City may schedule the after-school, weekend, holiday, and summer use of all District approved school grounds and multipurpose fields, when available and not already scheduled for District use consistent with the biannual scheduling agreement.
 - e. The City may utilize the School buildings (gymnasiums) provided applicable rental requirements are satisfied and a standard fee established and approved by the District is paid.
11. Except as expressly provided in this Agreement, the District shall be responsible for all costs relating to maintenance, repair, and replacement of District owned and maintained facilities and grounds.
12. For the purposes of this Agreement, all persons employed in the performance of services and functions for City shall be deemed City employees and no City employee shall be considered to be an employee of the District or under the jurisdiction of the District, nor shall such City employees have any

Exhibit A

District pension, civil service, or other status while an employee of the City. The District shall not be responsible for the payment of any salary, wage, or other compensation to any City personnel performing services hereunder for City. City shall not be liable for compensation or indemnity to any District employee for injury or sickness or wages arising out of his/her employment with District.

13. The District agrees that during the time that the City has use of the Joint Use Facilities, City may charge admissions fees for amateur athletic contests, demonstrations or exhibits, and other educational and non-commercial events. Such fees shall be levied and collected by the City, and shall remain the property of the City. Admission fees, however, may not be charged for any other type of events. In the use of Joint Use Facilities under this Agreement, City agrees to comply with all of the requirements of the Education Code, including, but not limited to, the Civic Center Act as set forth in Education Code Section 38130 *et seq.*, setting forth the limitations, requirements, and restrictions on the use of the Joint Use Facilities, and the fees that may be charged for the use thereof.

14. It is understood and agreed that all activities at the Joint Use Facilities sponsored by District shall be supervised and conducted by District, and that all activities facilitated by City at the Joint Use Facilities, pursuant to this agreement, shall be monitored by City staff as necessary. Each party shall be responsible for said areas during their period of use, and will bear the costs of all necessary supervising or teaching personnel during said period.

15. Insofar as it is legally authorized, the District shall hold free and harmless and defend the City, members of the City Council, boards or commissions, its employees, officers, agents, and volunteers, while acting as such ("City Agents"), from all claims, losses, damages, costs, expenses or liability which may arise by reason of liability imposed by law because of injury to property or injury to or death of persons, received or suffered by reason of or result of (1) any defective or dangerous condition of any ground, site, building, equipment, play areas recreation facilities or other improvement located on the Joint Use Facilities owned and maintained by District, or (2) participation in any activity carried out or sponsored by the District, or (3) any school activity being conducted on said premises by the District. Notwithstanding the foregoing, in no event shall the District be required to indemnify, hold harmless, or defend the City for any claims, losses, damages, costs, expenses, or liabilities to the extent arising from the City or the City Agents' sole or active negligence or willful misconduct, or from defective or dangerous conditions either caused by the City or the City Agents, or those known by the City or the City Agents and not reported to the District.

16. Insofar as it is legally authorized, the City shall hold free and harmless and defend the District, members of the Board of Trustees, its employees, officers, agents, and volunteers, while acting as such ("District Agents"), from all claims, loss, damages, costs, expenses or liability which may arise by reason of liability imposed by law because of injury to property or injury to or death of persons, received or suffered by reason of or result of (1) operation by the City of a City recreational program on or at the Joint Use Facilities, (2) the City's development of the athletic fields on or at the Joint Use Facilities or the City's performance of its obligations under this Agreement, or (3) a direct result of any recreational activity being conducted on the Joint Use Facilities by the City. Notwithstanding the foregoing, in no event shall the City be required to indemnify, hold harmless, or defend the District for any claims, losses,

Exhibit A

damages, costs, expenses, or liabilities to the extent arising from the District or the District Agents' sole or active negligence or willful misconduct. For all purposes of this Agreement, the use by any individual or group of the Joint Use Facilities as a result of the City's rights hereunder shall be deemed a use by the City of the Joint Use Facilities. The City's obligations under this section shall include the obligation to defend, indemnify, and hold harmless the District from and against any Workers' Compensation suits, liability, or expense arising from or connected with services performed on behalf of the City by any person pursuant to, or as a result of, this Agreement, or by way of their employment with the City.

17. The District shall carry property damage and public liability insurance that cover the Joint Use Facilities and other areas and activities set forth in this Agreement. The City's property damage and public liability insurance shall include all areas and activities set forth in this Agreement under their self-insurance program. Each party shall maintain limits of no less than (1) general liability coverage of at least \$5,000,000 per occurrence, \$10,000,000 aggregate for bodily injury, personal injury, and property damage, and (2) workers' compensation coverage in an amount sufficient to satisfy statutory limits and employer's liability in the amount of \$1,000,000 per accident for bodily injury or disease. For the General Liability policy, the other party, as well as their council members, board members, officers, officials, employees, agents, volunteers, and contractors, shall be named as additional insured's, with an endorsement evidencing such coverage to be provided to the other Party. Said coverage shall be primary insurance as respects the other Party, and its council members, board members, officers, officials, employees, agents, volunteers, and contractors. Any deductibles or self-insured retentions in excess of \$10,000 must be declared to and approved by the other Party. A policy of self-insurance may satisfy the foregoing obligations. The Parties shall furnish the other Party with original certificates and amendatory endorsements evidencing the coverage required herein, and complete certified copies of the underlying policies shall be provided on request.

18. The parties hereto acknowledge that there have been no representations made by either to the other not contained herein upon which either party is relying which has induced execution herein. This agreement embodies the entire agreement and understanding between the parties hereto relating to the subject matter hereof.

19. The City and its permitted user groups shall have only access to those area specified in this Agreement. The City and its permitted user groups shall not trespass or loiter in other areas of the school sites.

20. The term of this Agreement shall be for a length of ten years, renewable by mutual agreement between the City and the District. In addition, the terms of this Agreement may be modified at any time by mutual consent and written agreement of the respective parties.

21. Nothing in this Agreement is intended to affect the District's fee ownership of the Joint Use Facilities. The City shall neither encumber, nor permit the encumbrance of, any portion of the Joint Use Facilities. The City shall neither record, nor permit the recording of, any lien, including any mechanics or other liens or encumbrances of any nature with respect to the Joint Use Facilities. The City shall not

Exhibit A

pledge, assign or transfer, or collaterally assign, pledge or transfer any portion of the Joint Use Facilities, including any improvements thereon.

22. Nothing in this Agreement shall be construed to prohibit the District from participating financially in a specific recreation program when mutually agreed upon by the Board and the City Council.

23. This Agreement shall be binding upon and inure to the benefit of the heirs, successors, and assigns of the Parties. The City shall not, without written consent of the District, assign its rights and/or obligations under this Agreement without the consent of the District. The District shall not, without written consent of the City, assign its rights and/or obligations under this Agreement without the consent of the City.

24. If any Article, Section, Subsection, term, provision, covenant or condition of this Agreement is held by a court of competent jurisdiction to be invalid, void or unenforceable, the remaining Articles, Sections, Subsections, terms, provisions, covenants and conditions of this Agreement shall continue in full force and effect.

25. Failure by either Party to enforce any term, condition, restriction, or provision of this Agreement, in any certain instance or on any particular occasion, shall not be deemed a waiver of such enforcement right with respect to that or any future breach of the same or any other term, condition, restriction or provision herein.

26. Non-performance by any Party of any obligation set forth herein shall be excused when it is reasonably prevented or delayed by reason of any act, event, or condition reasonably beyond the control of that Party for any of the following reasons: (i) war, insurrection, significant and substantial civil commotion, riot, flood, severe weather, earthquake, fire, casualty, acts of public enemy, acts of God, governmental restriction other than of the non-performing Party, litigation (including, without limitation, litigation contesting the validity of, or seeking the enforcement or clarification of, this Agreement whether instigated by the District, City, or any other person or entity), acts or failures to act of any governmental agency or entity other than the non-performing Party; (ii) inability after best efforts to secure necessary labor, materials or tools, strikes, lockouts, other labor disputes, or delays of any contractor, subcontractor or supplier; or (iii) inability after best efforts to obtain and consummate necessary financing, or delays caused by any lender or third party relating thereto, provided, however, that any delay based upon this clause shall not be excused beyond one year.

27. This Agreement and all rights and obligations arising out of it shall be construed in accordance with the laws of the State of California. Any arbitration, litigation or other proceeding arising out of this Agreement shall be conducted only in the County of San Diego.

28. In interpreting this Agreement, it shall be deemed to have been prepared by the Parties jointly and no ambiguity shall be resolved against either Party on the premise that it or its attorneys was responsible for drafting this Agreement or any provision hereof. The captions or headings set forth in

Exhibit A

this Agreement are for convenience only and in no way define, limit, or describe the scope or intent or any Article, Section, or other provision hereof.

29. Nothing in this Agreement shall be construed as authorizing the recovery by, or award to, the prevailing Party in any action or other proceeding arising from this Agreement of attorneys' fees, costs, and expenses.

30. The Recitals stated herein are hereby incorporated into, and are effective and operative parts of, this Agreement.

31. This Agreement may be terminated without cause by either party as of June 30 of any fiscal year for any reason upon at least 180 days' written notice to the other. In the event of a default of any obligation by either party, the non-defaulting party shall be entitled to terminate this Agreement with 30 days' notice, provided the non-defaulting party has first provided the defaulting party with a notice of default and a 60-day opportunity to cure said default.

32. This Agreement may be executed in counterparts, each of which shall be an original and all of which shall constitute but one and the same instrument. Signature pages may be detached from counterpart originals and combined in one or more copies of this Agreement to physically form copies of this Agreement having original signatures of both Parties.

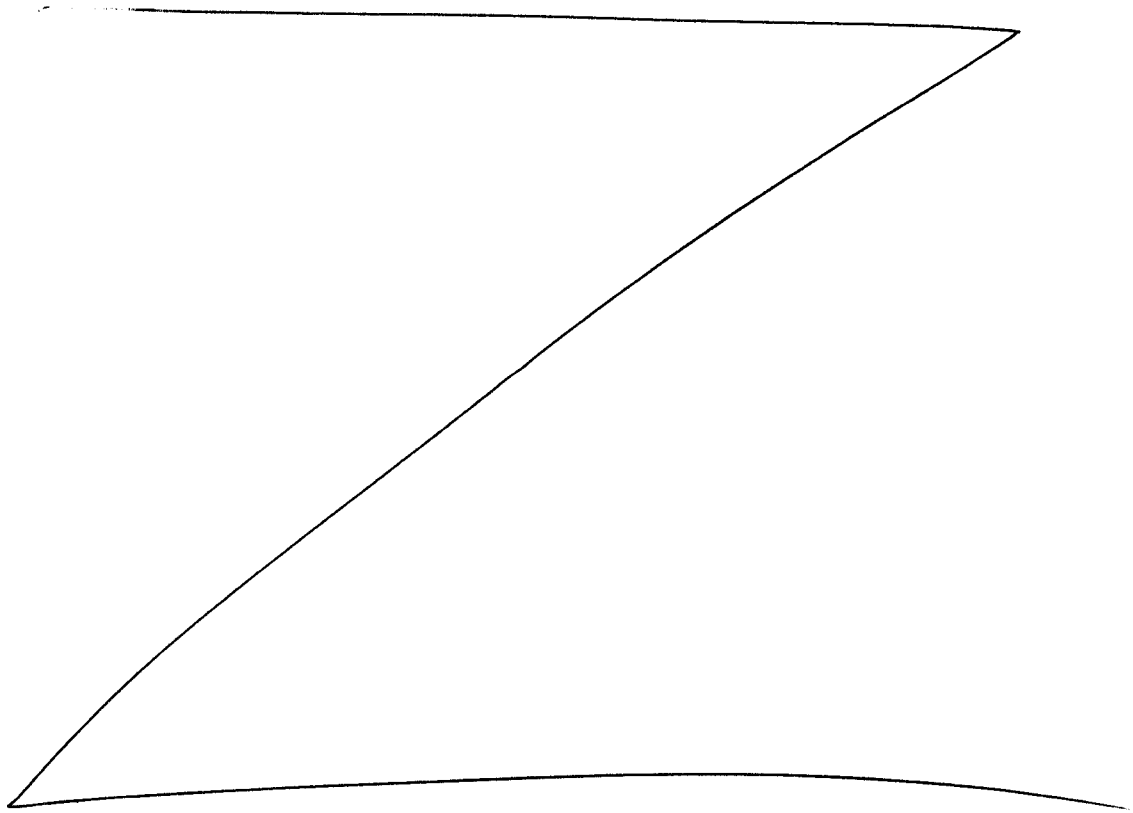


Exhibit A

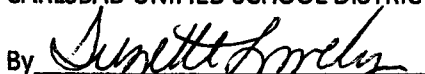
ATTEST:

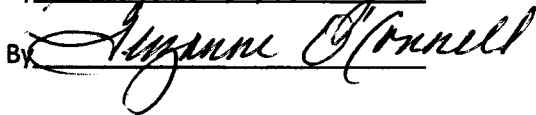


Barbara Engleson, City Clerk
CITY OF CARLSBAD, a municipal Corporation of the State of California

By 

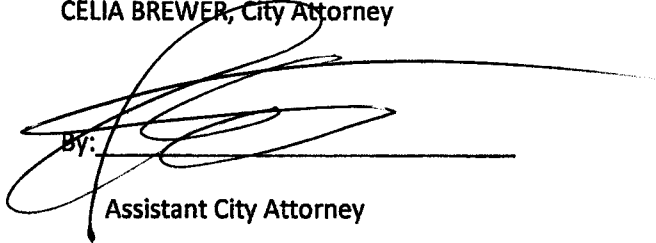
Matt Hall, Mayor
CARLSBAD UNIFIED SCHOOL DISTRICT

By 

By 

APPROVED AS TO FORM:

CELIA BREWER, City Attorney

By: 
Assistant City Attorney

JOINT USE AND COMMUNITY RECREATION AGREEMENT

BETWEEN CARLSBAD UNIFIED SCHOOL DISTRICT

AND

CITY OF CARLSBAD

THIS AGREEMENT ("Agreement") made and entered into as of the _____ day of _____ 2023~~13~~ by and between CITY OF CARLSBAD, a municipal corporation, hereinafter referred to as "City" and the Carlsbad Unified School District, State of California, hereinafter referred to as "District".

WITNESSETH

WHEREAS, the governing bodies of the City and District are mutually interested in an adequate program of community recreation under the auspices of the City Parks & Recreation Department, in cooperation with the District; and

WHEREAS, cities and school districts are authorized by Chapter 10 of Part 7 of Division 1, Title 1 of the Education Code of the State of California (sections 10900-10914.5) to facilitate a community recreation program and activities within or without their territorial limits; and

WHEREAS, said governing bodies are authorized to enter into agreements with each other, to promote the health and general welfare of the community and contribute to the attainment of the general recreation objectives for the children and adults within the community; and

WHEREAS, the City has established a "Parks & Recreation Department" responsible for carrying out the purposes of community recreation; and

WHEREAS, in the interest of providing the best service with the least possible expenditure of public funds, cooperation between the City and the District is necessary;

WHEREAS, the purpose of this Agreement is to define the City's joint use of District facilities, with separate agreements governing the District's use of the City's aquatic facilities.

NOW, THEREFORE, the City and District agree as follows:

1. The District will make available to the City certain school buildings (gymnasiums), and multipurpose fields, and related equipment at select school sites (collectively, "Joint Use Facilities") for the purpose of facilitating a diversified community recreational program. The Joint Use Facilities to be utilized pursuant to this Agreement shall include those specified in Section

10 of this Agreement, or any other such facilities that are subsequently agreed to in writing by the District and City, as approved by the City Manager and the District's Superintendent ("Superintendent") or their designated representatives.

2. The use of the Joint Use Facilities pursuant to this Agreement shall be in accordance with the regular procedures of the District in granting requests for use of school facilities, as specified by ~~Chapter 10 (commencing with Section 10900) of Part 7, Division 1, Title 1 of the Education Code for the State of California~~ **California Education Code sections 10900-10914.5, the Civic Center Act (California Education Code sections 38130-38138)**, and the policies, rules and regulations of the District's Governing Board ("District Board"), **including Board Policy 1330 (Use of School Facilities)**.

3. The recreation programs **and activities** scheduled by the City at the Joint Use Facilities shall be open on equal terms to all persons residing within the boundaries of the District and City, but such participation shall be subject to rules and regulations adopted by the City Council and the School District. It shall be the responsibility of the City to enforce the adherence of its permitted user groups to all rules and regulations established by the City and the District at the Joint Use Facilities. Failure to follow established rules and regulations may result in the denial of a request to use or access the Joint Use Facilities. If the District is impacted by the failure of a City scheduled user group to follow the rules and regulations, the District may in cooperation with the City, terminate the right of that user group to utilize the Joint Use Facilities.

4. A schedule of dates for the use of the Joint Use Facilities will be coordinated in advance by the City and the District through separate scheduling agreements prepared biannually. The schedule will be arranged as to avoid conflict between school **use** and ~~other City~~ recreational use. The scheduling of said facilities by the **City** Parks & Recreation Department for the purposes specified in this Agreement shall have second priority to those school events and programs scheduled by the District consistent with the biannual scheduling agreement.

Each biannual scheduling agreement will be prepared using the District's online reservation management system. At least three (3) months before the City can access the District's online reservation management system to reserve dates, District shall notify the City of the timeframe during which the City can reserve dates through the online reservation system (the "biannual scheduling period"). The biannual scheduling period shall last for a minimum of four (4) weeks. During each biannual scheduling period, City will use the District's online reservation system to reserve dates for the use of the Joint Use Facilities. The City may reserve additional dates for the use of the Joint Use Facilities following the biannual scheduling period subject to availability.

5. In the event of any dispute or conflict arising **between the City and the District** as a

result of the recreation program being conducted at the Joint Use Facilities, said dispute or conflict shall be settled by appealing to the City Manager and the Superintendent of the District ("District Superintendent"), in accordance with established policies and procedures of the District and City.

6. The Parks & Recreation Department will provide or cause to be provided all expendable materials (i.e. bats, balls, etc.) necessary for facilitating the recreational programs for all ages that will be conducted at the Joint Use Facilities, to the extent scheduled and conducted by the Parks & Recreation Department.

7. The City may install and will maintain irrigation systems, turf, ground cover, shrubs, trees, related amenities (backstops, dugouts, fencing, benches, etc.), and additional recreational equipment not in conflict with school use, on school property in areas agreed upon by the City Manager or designee, subject to the prior approval by the District Superintendent.

The City will provide general landscape and grounds maintenance services of multipurpose fields including, but not necessarily limited to irrigating, mowing, aerating, fertilizing, renovating, weeding, trimming, staking, disease treating, rodent/pest controlling (NO FUMIGATION ALLOWED ON DISTRICT SITES) and ~~litter collecting~~, as well as related amenities/equipment maintenance, including, but not limited to, sanding, painting, strapping, tying, anchoring, graffiti removal, and drainage. **City will collect litter/trash (including animal waste) from multipurpose fields prior to each daily period of scheduled use by the City (i.e., 8:00 a.m. to 10:00pm, or as otherwise reserved per Section 4). The District and the City will meet quarterly to confer on grounds maintenance services and standards of care for physical education and playground spaces.**

The City and/or its agents shall have the right to daily access to the involved properties for maintenance purposes as needed, subject to applicable City ordinances and reasonable regulation by the District for purposes of monitoring and protecting student safety. The City will provide the District Facilities Department a current "Schedule of Maintenance" for all sites listed in Section 10 of this Agreement, as well as those sites added pursuant to Section 1 of this Agreement.

Any plans, specifications, and installations of new equipment or new construction of facilities for community recreation purposes or otherwise shall be at the City's expense, shall have prior approval by the District Superintendent, shall meet standards established in the California Education Code and Code of Regulations, and shall receive the approval, as required, of the California Division of the State Architect ("DSA"). All structures on school grounds shall be constructed or modified in strict compliance with the requirements of DSA.

8. All structures or improvements constructed on the Joint Use Facilities site or installed thereon

by City with the District's approval (the "Improvements"), shall become and thereafter remain the property of the District AS-IS and without any warranty of any kind. The District may require the City, at the City's expense, to immediately remove any unapproved new structures that are installed in violation of the requirement of DSA or the Field Act, as set forth in Articles 3 and 6 (commencing with Sections 17280 and 17365, respectively) of Chapter 3, Part 10.5, Division 1, Title 1 of Education Code.

9. Prior to the installation by the City of any improvements, as mutually agreed upon by the City and the District, the City and District shall agree on the fair market value and anticipated service life of said improvement. Should the District exercise its option to terminate all or part of the Joint Use and Community Recreation Agreement, a prorated value for the specific improvement shall be assessed and paid to the City by the District.

10. The District and the City agree to the use of the following specific Joint Use Facilities:

- a. The City has the option to schedule the use of, ~~and have access to~~, approved Joint Use Facilities, subject to the limitations set forth in this Agreement.
- b. The City will maintain the multipurpose field areas and/or schoolgrounds on the following "Joint Use Facilities":

Magnolia Field	4.0 acres
Jefferson Field	2.3 20 acres
Buena Vista Lower Field	2.48 acres
Carlsbad HS Tennis Courts	1.26 68 acres
Valley Middle School (Upper and Lower Fields (including adjoining slopes)	8.5 acres
Aviara Oaks Middle School Field	3.17 4.70 acres
Kelly Field	2.90 acres
Hope Field	2.80 acres
Totaling	27.41 29.26 acres

- c. City will have access during scheduled use to the parking lots affiliated with the listed schools above, unless they have been previously scheduled by the District for District use consistent with the biannual scheduling agreement.
- d. City may schedule the after-school, weekend, holiday, and ~~summer~~ school recess

use of all District approved school grounds and multipurpose fields, when ~~available~~ and not already scheduled for District use consistent with the biannual scheduling agreement.

- e. The City may utilize the school buildings (gymnasiums) provided applicable rental requirements are satisfied and a standard fee established and approved by the District is paid.
- f. Except as provided in Section 10.e., the Joint Use Facilities described in this Agreement do not include access to school restrooms.
- g. The City will ensure that perimeter gates of all Joint Use Facilities are secure following the daily period of scheduled use (i.e., 8:00 a.m. to 10:00pm, or as otherwise reserved per Section 4), on any dates outside of school operating dates.
- h. Boundary maps of the multipurpose field areas and/or school grounds of the Joint Use Facilities described in this section are attached to this Agreement as Exhibit A.

11. Except as expressly provided in this Agreement, the District shall be responsible for all costs relating to maintenance, repair, and replacement of District owned and maintained facilities and grounds.

12. For the purposes of this Agreement, ~~all~~ ~~no~~ persons employed in the performance of services and functions ~~on behalf of~~ City shall be deemed ~~City to be District~~ employees ~~or independent contractor's of the District.~~ ~~and none~~ ~~No~~ City employee shall be considered to be an employee of the District or under the jurisdiction of the District, nor shall such City employees have any District pension, civil service, or other status while an employee of the City. The District shall not be responsible for the payment of any salary, wage, or other compensation to any City personnel ~~or City independent contractor~~ performing services hereunder for City. City shall not be liable for compensation or indemnity to any District employee ~~or independent contractor of the District~~ for injury or sickness or wages arising out of his/her employment with ~~or work on behalf of the~~ District.

13. The District agrees that during the time that the City has use of the Joint Use Facilities, City may charge admissions fees for amateur athletic contests, demonstrations or exhibits, and other educational and non-commercial events. Such fees shall be levied and collected by the City, and shall remain the property of the City. Admission fees, however, may not be charged for any other type of events. In the use of Joint Use Facilities under this Agreement, City agrees to comply with all of the requirements of the Education Code, including, but not limited to, the Civic Center Act as set forth in Education Code Section 38130 *et seq.*, setting forth the limitations, requirements, and restrictions on the use of the Joint Use Facilities, and the fees that may be charged for the use

thereof.

14. It is understood and agreed that all activities at the Joint Use Facilities sponsored by District shall be supervised and conducted by District, and that all activities facilitated by City at the Joint Use Facilities, pursuant to this agreement, shall be monitored by City staff as necessary. Each party shall be responsible for said areas during their period of use, and will bear the costs of all necessary supervising or teaching personnel during said period.

15. Insofar as it is legally authorized, the District shall hold free and harmless and defend the City, ~~members of the City Council, boards or commissions, its~~ and its officers, officials, employees, ~~officers,~~ agents, and volunteers, while acting as such ("City Agents"), from ~~and against~~ all claims, losses, damages, costs, expenses or liability which may arise ~~by reason of liability imposed by law~~ because of ~~injury~~ damage to property, or injury to or death of persons, received or suffered by reason of or result of (1) any defective or dangerous condition of any ground, site, building, equipment, play areas recreation facilities or other improvement located on the Joint Use Facilities owned and maintained by District, or (2) participation in any activity carried out or sponsored by the District, or (3) any school activity being conducted on said premises by the District. Notwithstanding the foregoing, in no event shall the District be required to indemnify, hold harmless, or defend the City for any claims, losses, damages, costs, expenses, or liabilities to the extent arising from the City or the City Agents' sole or active negligence or willful misconduct, or from defective or dangerous conditions either caused by the City or the City Agents, or those known by the City or the City Agents and not reported to the District.

16. Insofar as it is legally authorized, the City shall hold free and harmless and defend the District, ~~member of the Board of Trustees, and~~ its officers, officials, its employees, ~~officers,~~ agents, and volunteers, while acting as such ("District Agents"), from all claims, loss, damages, costs, expenses or liability which may arise ~~by reason of liability imposed by law~~ because of ~~injury~~ damage to property, or injury to or death of persons, received or suffered by reason of or result of (1) operation by the City of a City recreational program on or at the Joint Use Facilities, (2) the City's development of the athletic fields on or at the Joint Use Facilities or the City's performance of its obligations under this Agreement, or (3) a direct result of any recreational activity being conducted on the Joint Use Facilities by the City. Notwithstanding the foregoing, in no event shall the City be required to indemnify, hold harmless, or defend the District for any claims, losses, damages, costs, expenses, or liabilities to the extent arising from the District or the District Agents' sole or active negligence or willful misconduct. For all purposes of this Agreement, the use by any individual or group of the Joint Use Facilities as a result of the City's rights hereunder shall be deemed a use by the City of the Joint Use Facilities. The City's obligations under this section

shall include the obligation to defend, indemnify, and hold harmless the District from and against any Workers' Compensation suits, liability, or expense arising from or connected with services performed on behalf of the City by any person pursuant to, or as a result of, this Agreement, or by way of their employment with the City.

17. The District shall carry property damage and public liability insurance that cover the Joint Use Facilities and other areas and activities set forth in this Agreement. The City's property damage and public liability insurance shall include all areas and activities set forth in this Agreement under their self-insurance program. Each party shall maintain limits of no less than (1) general liability coverage of at least \$5,000,000 per occurrence, \$10,000,000 aggregate for bodily injury, personal injury, and property damage, and (2) workers' compensation coverage in an amount sufficient to satisfy statutory limits and employer's liability in the amount of \$1,000,000 per accident for bodily injury or disease. For the General Liability policy, the other party, as well as their council members, board members, officers, officials, employees, agents, volunteers, and contractors, shall be named as additional insured's, with an endorsement evidencing such coverage to be provided to the other Party. Said coverage shall be primary insurance as respects the other Party, and its council members, board members, officers, officials, employees, agents, volunteers, and contractors. Any deductibles or self-insured retentions in excess of \$10,000 must be declared to and approved by the other Party. A policy of self-insurance may satisfy the foregoing obligations.

The Parties shall furnish the other Party with original certificates and amendatory endorsements evidencing the coverage required herein, and complete certified copies of the underlying policies shall be provided on request.

18. The parties hereto acknowledge that there have been no representations made by either to the other not contained herein upon which either party is relying which has induced execution herein. This agreement embodies the entire agreement and understanding between the parties hereto relating to the subject matter hereof.

19. The City and its ~~permitted users~~ ~~s groups~~ shall ~~only~~ have ~~only~~ access to those areas specified in this Agreement. The City and its ~~permitted users~~ ~~s groups~~ shall not trespass or loiter in other areas of the school sites.

20. The term of this Agreement shall be for a length of ten years, renewable by mutual ~~written~~ agreement between the City and the District. In addition, the terms of this Agreement may be modified at any time by mutual consent and written agreement of the respective parties.

21. Nothing in this Agreement is intended to affect the District's fee ownership of the Joint Use Facilities. The City shall neither encumber, nor permit the encumbrance of, any portion of the Joint Use Facilities. The City shall neither record, nor permit the recording of, any lien, including any mechanics or other liens or encumbrances of any nature with respect to the Joint Use Facilities. The

City shall not pledge, assign or transfer, or collaterally assign,pledge or transfer any portion of the Joint Use Facilities, including any improvements thereon.

22. Nothing in this Agreement shall be construed to prohibit the District from participating financially in a specific recreation program when mutually agreed upon by the Board and the City Council.

23. This Agreement shall be binding upon and inure to the benefit of the heirs, successors, and assigns of the Parties. The City shall not, without written consent of the District, assign its rights and/or obligations under this Agreement without the consent of the District. The District shall not, without written consent of the City, assign its rights and/or obligations under this Agreement without the consent of the City.

24. If any Article, Section, Subsection, term, provision, covenant or condition of this Agreement is held by a court of competent jurisdiction to be invalid, void or unenforceable, the remaining Articles, Sections, Subsections, terms, provisions, covenants and conditions of this Agreement shall continue in full force and effect.

25. Failure by either Party to enforce any term, condition, restriction, or provision of this Agreement, in any certain instance or on any particular occasion, shall not be deemed a waiver of such enforcement right with respect to that or any future breach of the same or any other term, condition, restriction or provision herein.

26. Non-performance by any Party of any obligation set forth herein shall be excused when it is reasonably prevented or delayed by reason of any act, event, or condition reasonably beyond the control of that Party for any of the following reasons: (i) war, insurrection, significant and substantial civil commotion, riot, flood, severe weather, earthquake, fire, casualty, acts of public enemy, acts of God, governmental restriction other than of the non-performing Party, litigation (including, without limitation, litigation contesting the validity of, or seeking the enforcement or clarification of, this Agreement whether instigated by the District, City, or any other person or entity), acts or failures to act of any governmental agency or entity other than the non-performing Party; (ii) inability after best efforts to secure necessary labor, materials or tools, strikes, lockouts, other labor disputes, or delays of any contractor, subcontractor or supplier; or (iii) inability after best efforts to obtain and consummate necessary financing, or delays caused by any lender or third party relating thereto, provided, however, that any delay based upon this clause shall not be excused beyond one year.

27. This Agreement and all rights and obligations arising out of it shall be construed in accordance with the laws of the State of California. Any arbitration, litigation or other proceeding arising out of this Agreement shall be conducted only in the County of San Diego.

28. In interpreting this Agreement, it shall be deemed to have been prepared by the Parties

jointly and no ambiguity shall be resolved against either Party on the premise that it or its attorneys was responsible for drafting this Agreement or any provision hereof. The captions or headings set forth in this Agreement are for convenience only and in no way define, limit, or describe the scope or intent or any Article, Section, or other provision hereof.

29. Nothing in this Agreement shall be construed as authorizing the recovery by, or award to, the prevailing Party in any action or other proceeding arising from this Agreement of attorneys' fees, costs, and expenses.

30. The Recitals stated herein are hereby incorporated into, and are effective and operative parts of, this Agreement.

31. This Agreement may be terminated without cause by either party as of June 30 of any fiscal year for any reason upon at least 180 days' written notice to the other. In the event of a default of any obligation by either party, the non-defaulting party shall be entitled to terminate this Agreement with 30 days' notice, provided the non-defaulting party has first provided the defaulting party with a notice of default and a 60-day opportunity to cure said default.

32. This Agreement may be executed in counterparts, each of which shall be an original and all of which shall constitute but one and the same instrument. Signature pages may be detached from counterpart originals and combined in one or more copies of this Agreement to physically form copies of this Agreement having original signatures of both Parties.

ATTEST:

CITY OF CARLSBAD, a municipal Corporation of the State of California

By _____

CARLSBAD UNIFIED SCHOOL DISTRICT By_

By _____

By _____

APPROVED AS TO FORM: ~~Celia Brewer~~ CINDIE MCMAHON, City Attorney

By: _____

Assistant City Attorney

Tammy Cloud-McMinn

From: Kathy Parker <casparker@outlook.com>
Sent: Tuesday, December 5, 2023 1:29 PM
To: City Clerk
Subject: Item 2 on Dec 5th agenda

All Receive - Agenda Item # 2
For the Information of the:
CITY COUNCIL
Date 12/5/23 CA ☒ CC ☒
CM ☒ ACM ☒ DCM (3) ☒

Council members,

Usually only one or two of the nine tennis courts behind the high school are in use during the week. There are several of us retired seniors, who began using them for Pickleball last year, but were thwarted when Parks and Rec put a sign up forbidding us on the courts for that use. Four of us in particular live within walking distance of the courts and enjoy playing with each other. The city would have us get in a car and drive to one of their designated courts and each play with whomever came up next in the queue. (Frequently there is a lot more time spent waiting for a turn than playing.)

This sport is rapidly gaining popularity, and is particularly a good source of exercise for seniors. I implore the city to designate a couple of the 9 courts, (away from the street, as the noise seems to be a problem for some local residents), for Pickleball use as MANY other communities in our county are doing.

Kathy Parker, (47 year resident of..)
3784 Skyline Rd
92008

CAUTION: Do not open attachments or click on links unless you recognize the sender and know the content is safe.

Tammy Cloud-McMinn

From: Council Internet Email
Sent: Tuesday, December 5, 2023 4:24 PM
To: City Clerk
Subject: FW: 12/5 Council Mtg; Consent Calendar Item 2
Attachments: Carlsbad CC Joint Use Agreement Letter 12.5.23.pdf

From: Michael Farraher <mfarraher@gmail.com>
Sent: Tuesday, December 5, 2023 3:06 PM
To: Council Internet Email <CityCouncil@carlsbadca.gov>
Subject: 12/5 Council Mtg; Consent Calendar Item 2

Sir/Madam,

Kindly add the attached correspondence to the record for this evening's Council meeting

Thank you,

Mike Farraher

CAUTION: Do not open attachments or click on links unless you recognize the sender and know the content is safe.

Michael J. Farraher
3502 Donna Drive
Carlsbad, CA 92008
(617) 913-4233

December 5, 2023

City of Carlsbad
Attn: City Council
1200 Carlsbad Village Drive
Carlsbad, CA 92008

Email: council@carlsbadca.gov

Dear Councilmembers:

I am writing to request that you defer action on the Consent Calendar Agenda Item 2 in order to allow for public input as to the terms and scope of this matter. The proposed Joint Use Agreement intends to commit City resources, with the intended benefit of the public use of District facilities, for the next ten (10) years. However, this proposed agreement appears to have been negotiated privately between City and District staff, without any public input or participation.

I share the City's belief that "(w)ell planned and strategic public involvement programs result in decisions that reflect the community's needs, values priorities, improving outcomes and building greater trust between government and (the public)¹". I look forward to an opportunity to discuss this matter with staff prior to City Council action on this decade-long commitment.

Thank you for attention to this matter.

Sincerely,

/s/ Mike Farraher
Michael J. Farraher
(617) 913-4233

¹<https://www.carlsbadca.gov/residents/communication/public-input/framework>